

The complaint

Ms H is unhappy that her storm damage claim has been declined by Ageas Insurance Limited under her home insurance policy.

Ms H was represented by her brokers in negotiations with Ageas but I'll refer to Ms H for the purposes of this decision.

What happened

Ms H noticed loose tiles on her roof, so she made a claim. Ageas considered the claim but said its policy definition of storm (55mph wind speeds) hadn't been reached so it declined to pay for any damage. Ms H brought her claim to this service.

Our investigator upheld the complaint. She said the three points this service review to consider whether or not a storm had occurred had all been met. She said a storm incident had occurred and caused the damage regardless of the Ageas policy definition. Our investigator also felt the damage was an accident in line with the policy definition of accidental damage too.

Ageas didn't accept this and asked for the complaint to be passed to an ombudsman for a final decision.

What I've decided – and why

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint.

When looking at storm damage cases we ask three questions:

- were there storm conditions on or around the date of the claim?
- is the damage consistent with storm damage?
- were the storm conditions the main cause of the damage?

If the answer to any of these questions is "no" then the claim won't succeed.

Ageas said the policy required the wind speed to be in excess of 55mph before it would consider any claim to be caused by storm conditions. I accept that this is what the policy wording states. So, Ageas feel the answer to question one is "no". Records show that wind speeds around the time of the damage were as high as 51mph. So, I think the answer to question one is "yes". I don't think it's fair and reasonable for Ageas to insist the 55mph limit needs to be reached for damage to be considered at storm levels. I think 55mph is above what this service and the wider insurance industry would consider fair and reasonable. I think at 51mph insurers should be treating the damage as if it had been caused by a storm.

In relation to question two I think tiles coming loose on a roof that is recorded as well maintained is consistent with storm damage. So, the answer is "yes".

Turning to question three Ms H's contractor said the roof was in good condition. He also said the high winds were the only logical reason for the tiles to come off. This information is the best evidence on the file and is therefore persuasive. So, the answer to question three is "yes".

Putting things right

I think Ageas acted unreasonably when it declined to deal with Ms H's claim, and it needs to pay her storm damage repair costs.

My final decision

I require Ageas Insurance Limited to:

- pay Ms H's storm damage repair costs.

Under the rules of the Financial Ombudsman Service, I'm required to ask Ms H to accept or reject my decision before 16 September 2020.

John Quinlan
Ombudsman